

Krishna Agrawal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 16 February 2016 · Writ-C No. 6076 of 2016 · WRIT - C No. 6076 of 2016 · **Writ disposed; EE to decide billing representation in two months.**

HEADNOTE

Alleged factually incorrect electricity bills are remediable under clause 6.5 of the U.P. Electricity Supply Code, 2005, which provides for disputed bills and arrears. Where a representation already lies before the Executive Engineer, the writ court will not examine the bills on merits and will dispose of the petition by directing that authority to decide the representation in accordance with law within a fixed time.

FACTUAL SUMMARY

Krishna Agrawal petitioned the Allahabad High Court seeking rectification of two electricity bills dated 16 December 2015 and 26 December 2015, which he said were factually incorrect. Respondents were the State of Uttar Pradesh and the distribution licensee. On the hearing, counsel submitted that such billing disputes could be remedied under paragraph 6.5 of the U.P. Electricity Supply Code, 2005. The petitioner had already represented the matter to the Executive Engineer, Purvanchal Vidyut Vitran Khand, Naini/Jhusi, Allahabad.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed bills — representation to Executive Engineer

HOLDING

Billing disputes, including alleged factually incorrect bills, are remediable under clause 6.5 of the U.P. Electricity Supply Code, 2005, which provides for disputed bills and arrears. Treating the Executive Engineer as the competent authority, and noting that a representation was already pending, the Court declined to examine the bills on merits and disposed of the writ by directing the Executive Engineer, Purvanchal Vidyut Vitran Khand, Naini/Jhusi, to decide that representation in accordance with law within two months. ¶ 3-4

FLAG Court also cited 'paragraph 7.4' of the Supply Code as making the Executive Engineer the competent authority to redress the billing grievance. Clause 6.5 is the disputed-bills provision; 7.4 is retained as stated and is not treated as 7.7.4.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILLS DATED 16.12.2015 AND 26.12.2015 WERE FACTUALLY INCORRECT

Left to the Executive Engineer to decide the pending representation in accordance with law. ¶ 4